



## How to Expunge Your Criminal and/or Juvenile Record

### What is an Expungement?

An expungement is the removal and isolation of all records on file within any court, detention or correctional facility, law enforcement, criminal justice agency or juvenile justice agency concerning a person's apprehension, arrest, detention, trial or disposition of an offense within the criminal or juvenile justice system. Unless otherwise provided by law, if an order for expungement is granted, the adult arrest, the record of law enforcement taking you into custody as a juvenile, conviction, adjudication of delinquency, disposition and any related proceedings are considered not to have occurred. See the section on Comparison of Adult and Juvenile Terms for a glossary of terms that are specific to juvenile court.

The New Jersey expungement law states in detail who is eligible for an expungement. You should review the current applicable provisions of N.J.S.A. 2C:52-1 through N.J.S.A. 2C:52-32 to determine if you are eligible. If eligible you must prepare and file a *Petition for Expungement*. The *Petition for Expungement* must be filed in the Superior Court in the county where you were arrested or prosecuted as an adult or taken into custody or adjudicated as a juvenile. A judge then decides whether you should be granted an *Expungement Order*.

**In general**, these materials provide basic information about how to file a *Petition for Expungement*. These materials do not provide specific advice about a particular legal problem that you may have, and they are not a substitute for seeing a lawyer. If you encounter a problem or are in doubt as to whether you need a lawyer, talk to one.

Contact information of county [directories](#) for expungement-related matters can be found on [njcourts.gov](http://njcourts.gov).

**NOTE:** These materials have been prepared by the New Jersey Administrative Office of the Courts for use by self-represented litigants. The guide, instructions, and forms will be periodically updated as necessary to reflect current New Jersey statutes and court rules. The most recent version of the forms will be available at the county courthouse or on the Judiciary's Internet site ([njcourts.gov](http://njcourts.gov)). However, you are ultimately responsible for the content of your court papers.

Acknowledgment: The New Jersey Judiciary would like to acknowledge Legal Services of New Jersey for allowing us to modify their expungement guide. The work that you see in this Pro Se Expungement Packet is a product of our collaborative efforts.

## **Things to Think About Before You Represent Yourself in Court**

### **Try to Get a Lawyer**

The court system can be confusing, and it is a good idea to get a lawyer if you can. If you cannot afford a lawyer, you may wish to contact the legal services program in your county to see if you qualify for free legal services. Their telephone number can be found online under Legal Aid or Legal Services.

If you do not qualify for free legal services and need help in locating an attorney, you can contact the bar association in your county. Most county bar associations have a lawyer referral service. The county bar lawyer referral service can supply you with the names of attorneys in your area who usually are willing to handle your particular type of case. Such attorneys are sometimes willing to consult with people in your situation at a reduced fee.

There are also a variety of organizations of minority lawyers throughout New Jersey, as well as organizations of lawyers who handle specialized types of cases. Ask your county court staff for a list of lawyer referral services that include these organizations.

### **Keep Copies of All Papers**

Make and keep for yourself copies of all completed forms and any canceled checks, money orders, sales receipts, bills, contract estimates, letters, leases, photographs and other important documents that relate to your case.

**NOTE: Remember to also keep a copy of your final expungement order should your petition be granted. Once granted, obtaining a copy will require a judge's order.**

### **What You Should Expect If You Represent Yourself**

While you have the right to represent yourself in court, you should not expect any special treatment, help, or attention from the court. You must still comply with the rules of the court, even if you are not familiar with them. The following is a list of some things the court staff can and cannot do for you. Please read it carefully before asking the court staff for help.

- We *can* explain and answer questions about how the court works.
- We *can* tell you what the requirements are to have your case considered by the court.
- We *can* give you some information from your case file.
- We *can* provide you with samples of court forms that are available.
- We *can* provide you with guidance on how to fill out forms.
- We *can* usually answer questions about court deadlines.
- We *cannot* give you legal advice. Only your lawyer can give you legal advice.

- We *cannot* tell you whether or not you should bring your case to court.
- We *cannot* give you an opinion about what will happen if you bring your case to court.
- We *cannot* recommend a lawyer, but we can provide you with the telephone number of a local lawyer referral service.
- We can *cannot* not talk to the judge for you about what will happen in your case.
- We *cannot* let you talk to the judge outside of court.
- We *cannot* change an order issued by a judge.

## Comparison of Adult and Juvenile Terms

The table below compares commonly understood criminal terms to terms specific to juvenile delinquency matters. Juvenile delinquency matters should not be considered the same as adult criminal actions. The process for expunging juvenile records, however, is the same as that for expunging adult criminal matters. In fact, if you have both adult and juvenile records that you wish to expunge, you should include all matters in your expungement petition.

| <b>Criminal Term</b>                | <b>Juvenile Term</b>                                                                                       |
|-------------------------------------|------------------------------------------------------------------------------------------------------------|
| Arrest                              | Taking juvenile into custody                                                                               |
| Conviction                          | Adjudication of delinquency                                                                                |
| Sentence                            | Disposition                                                                                                |
| Indictment                          | No equivalent - A juvenile is charged with an offense without an indictment process                        |
| Jail, prison or incarceration       | Secure facility, youth house or detention center or juvenile justice institution (specific names may vary) |
| Pretrial Intervention Program (PTI) | Diversion - Juvenile Conference Committee or an Intake Services Conference                                 |

## Glossary of Terms

|                       |                                                                                                                                                                                                                                                                                                                                                                                                                 |
|-----------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Deferred Disposition: | In a deferred disposition, the court adjudicates the juvenile delinquent and sets forth conditions for the juvenile to meet. If the juvenile meets the terms of those conditions, then the disposition will be dismissed pursuant to the court's order.                                                                                                                                                         |
| Diversion:            | A diversion is the process of removing minor juvenile cases from the full judicial process on the condition that the accused participates successfully in a rehabilitative process, such as a Juvenile Conference Committee or an Intake Services Conference. If conditions entered into by these diversions are met, then it results in a dismissal of the case, and no appearance before a judge is required. |
| Indictable Offense:   | A criminal offense that includes first, second, third and fourth degree crimes. An indictable offense <b>does not include</b> disorderly persons, petty disorderly persons or municipal ordinance violations.                                                                                                                                                                                                   |

## **How to File for an Order to Expunge Your Criminal and/or Juvenile Record**

### **Records You Will Need**

In order to prepare your expungement petition and prove your eligibility, you will need to get the following information:

- The date of your arrest as an adult or when you were taken into custody as a juvenile.
- The statute(s) and the offense(s) for which you were arrested, taken into custody as a juvenile, convicted or adjudicated delinquent.
- The original indictment, accusation, summons, docket number, warrant number or complaint number. Include all, if more than one.
- The date of the disposition, which could be the date of the conviction or adjudication of delinquency, date of not guilty verdict or date of dismissal.
- The specific punishment or other disposition.

|                                                                                                                                                              |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <p><b>Note:</b> All of your arrests, charges, or prosecutions, even those for which you are not seeking an expungement, must be listed in your petition.</p> |
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### **Where to Locate Records**

If you had an attorney when you were arrested as an adult and/or taken into custody as a juvenile and charged, check first to see if he or she has this information in your case file; if so, this can save you quite a bit of time.

If you must locate your records on your own for an indictable/criminal conviction or arrest, contact the Superior Court Criminal Case Management Office in the county where the arrest or conviction occurred and they will advise you how copies of those records can be obtained. A list of county Criminal Case Management Offices appears at the end of this guide.

If you must locate your records on your own for a juvenile delinquency matter, contact the Superior Court Family Division Office in the county where you were taken into custody as a juvenile, where charges were filed, or where the adjudication occurred, and they will advise you how copies of those records can be obtained. A list of county Family Division Offices appears at the end of this guide.

If you were taken into custody as a juvenile and no charges were filed against you, you must contact the appropriate law enforcement agency for information related to that incident.

You might also contact the county prosecutor. A list of county prosecutors' offices with addresses and telephone numbers appears at the end of this guide. Explain that you are interested in expunging your records and ask for the information listed above or ask to look at your file if this is permitted.

You may also be able to find information you need on disorderly persons offenses by contacting the administrator of the municipal court(s) in which you were prosecuted, or the police department involved in your arrest(s) as an adult or that took you into custody as a juvenile. If you cannot get all of the information, you need to follow Step 1 on the next page.

You may be eligible for an expungement if you still owe money for restitution, fine(s), or other court-ordered financial assessment(s). If, at the time you are filing this petition, you owe money for restitution, fine(s), or other court ordered financial assessment(s), you should contact the appropriate Probation Division Office(s) for the total amount still owed. Please see the list of Probation Division Offices at the end of this packet. If your case was a municipal court matter(s), you should contact the appropriate municipal court(s) for the total amount still owed. For a full listing of Municipal Courts please visit [njcourts.gov](http://njcourts.gov).

If you had a legal name change, you must attach a copy of your court order. To get a copy of your court order, you should contact the county courthouse in the county where the case was heard. However, if your name change was requested and granted as a part of your divorce, you do not need to attach the divorce order with your petition.

**The numbered steps that follow explain what forms you will need to fill out and what to do with them. Specific directions on filling out each form appear before each of the attached forms. Follow these directions carefully. Each form should be typed or clearly printed on 8 ½ " x 11" white paper only. Forms may not be filed on a different size or color paper.**

### **Steps for Filing**

#### **Special Expungements**

If you are seeking an expungement as a result of successful graduation from drug court that occurred on or after 4/18/2016, you should contact the Public Defender's Office from your drug court before filing for an expungement.

If you are filing for an expungement of **only** the marijuana or hashish offenses included in N.J.S.A. 2C:52-5.1, you only need to complete the Petition (Form A) and the Expungement Order (Form C). If you use the Cover Letter to Court - For Filing (Form D), you should delete the reference to the Order for Hearing in the first sentence because you do not need to attach the Order for Hearing (Form B) with your petition. You do **not** need to complete the

- Verification (Form A – Continued) page,
- Order for Hearing (Form B),
- Cover Letter – Notice of Hearing (Form E), or the
- Proof of Notice (Form F).

All other expungements use the following instructions, starting at Step 1.

#### **STEP 1: Request State Police Criminal History Record – Fingerprint Check (This step is only necessary if you do not already have your criminal/juvenile history information about your arrests, charges and dispositions)**

In order to obtain your criminal/juvenile history record (also known as a rap sheet) from the New Jersey State Police you will need to be fingerprinted. The State Police use the electronic fingerprint scanning services of a private company, IDEMIA USA. You will need to contact IDEMIA USA to schedule an appointment for fingerprinting. You can obtain additional information and schedule an appointment via the internet at [www.bioapplicant.com/nj](http://www.bioapplicant.com/nj), or by calling their toll-free telephone: 1-877-503-5981.

Additional information about obtaining criminal/juvenile history record checks can also be obtained from the New Jersey State Police website <https://www.state.nj.us/lps/njsp/> or by calling their Criminal Information Unit at 609-882-2000 ext. 2918.

**Note:** The State Police will have a criminal/juvenile history only if you were fingerprinted when you were arrested. If you were not fingerprinted, and only a complaint was signed against you when you were arrested, you will still have a record with the police department and the court, but you will not have a record sheet within the Division of State Police, State Bureau of Investigation.



## **STEP 2: Complete the following forms:**

### ***Petition for Expungement (Form A)***

The *Petition for Expungement* states that you are requesting an *Expungement Order* and states why you qualify. Complete the *Petition for Expungement Order* by following the instructions for Form A.

You must then file the petition in the county where you were arrested or prosecuted as an adult or taken into custody or adjudicated as a juvenile. If you were involved in multiple cases in more than one county, contact the Criminal Case Management Office in either county and ask whether they will allow you to file for expungement of your entire record in that county.

However, if you are filing a petition for expungement **solely** on a conviction for a disorderly persons or a petty disorderly persons offense, you must file the petition in the county where the most recent disorderly persons or petty disorderly persons offense was adjudged.

If you are filing a petition for expungement as a result of successful graduation from drug court that occurred prior to April 18, 2016, you must file in the county where you graduated.

Next, you must complete the *Verification* page and sign it in the presence of a Notary Public because this page must bear a notary seal.

### ***Order for Hearing (Form B)***

The *Order for Hearing* is used by the judge to schedule a hearing. The Superior Court judge assigned to your case will usually schedule a hearing between 35 and 60 days after he or she gets your petition. Fill out the *Order for Hearing* by following the instructions for Form B.

## **STEP 3: File and Serve the Forms**

**Make three (3) copies** of your notarized *Petition for Expungement* (Form A), *Order for Hearing* (Form B), and proposed *Expungement Order* (Form C). The original and two (2) copies should be filed with the court. Keep one copy of each for your records.

### **Form D - Cover Letter - For Filing**

The *Cover Letter - For Filing* is a form letter that describes to the Superior Court Criminal Case Management Office the contents of your package and the purpose of the enclosed forms. Fill in the blanks on the *Cover Letter* (Form D) and attach the *Cover Letter* to the originals and the two photocopies that you are filing (keep one copy of each for your records). Include two large self-addressed envelopes with the appropriate postage stamped on each envelope. These envelopes will be used to send filed copies of your package back to you. Mail this package to the Criminal Case Management Office in

the county where you were arrested/taken into custody and/or where the prosecution/adjudication occurred.

If you were involved in multiple cases in more than one county, mail this package to the Criminal Case Management Office in the county which has allowed you to file for expungement of your entire record. If you prefer, you may file this package in person. A list of the Criminal Case Management Offices where these forms should be mailed, along with telephone numbers, appears at the end of this guide.

#### **Step 4: Distributing the Filed Copies**

One copy of the *Petition for Expungement*, *Order for Hearing*, and the proposed *Expungement Order* will be mailed back to you marked **“Filed”** and assigned an **“Expungement Docket Number.”** The *Order for Hearing* will also state the time and the date for your hearing.

Immediately after receiving the filed copies from the court, **make at least seven (7) copies** of the *Petition for Expungement*, *Order for Hearing*, and the proposed *Expungement Order*.

**Mail one copy of each, immediately, by certified mail, return receipt requested, to each of the following government agencies that were involved with your case(s):**

- The Attorney General of New Jersey.
- The Superintendent of State Police, Expungement Unit.
- The County Prosecutor.
- The administrator of the municipal court if a municipal court heard the matter.
- The Chief of Police or other head of the police department where the offense was committed or the arrest was made.
- The chief law enforcement officer of any other law enforcement agency of the State that participated in the arrest.
- The Warden or superintendent of any institution in which you were incarcerated.
- The County Probation Division should be provided a copy if you were granted a conditional discharge, conditional dismissal, enrolled into the Pretrial Intervention Program (PTI), enrolled in a juvenile diversion program (Juvenile Conference Committee or Intake Service Conference), granted a deferred disposition, performed community service, owed fines or restitution or you served a term of probation. If your case was transferred to another county for supervision, you should send the information to the original county probation office and the county probation office where your supervision was transferred.

- The Division of Criminal Justice, Records and Identification Unit should be provided a copy if your case was processed through the State Grand Jury.

### **Form E - Cover Letter - Notice of Hearing**

You may use the *Cover Letter - Notice of Hearing* (Form E) when mailing the copies to these agencies. Fill in the blanks on the *Cover Letter* (Form E) and attach the *Cover Letter* to each set of copies.

**You should mail the copies of these forms right away, because the law requires service or mailing within five (5) days from the date that the *Order for Hearing* was signed. Mail them at the post office, by certified mail, return receipt requested which can be done by electronic means (see Note in box below).**

### **Form F - Proof of Notice**

After you have received the certified mail return receipt cards or the electronic confirmation of mailing from the post office, contact the Criminal Case Management Office, and ask the clerk whether the court requires that the proof of mailing be submitted at or prior to the hearing. If proof is required to be produced at the hearing, make sure that you bring the green certified mail return receipt cards or the electronic confirmation of mailing (see box below) and the *Proof of Notice* (Form F) to court with you on the day of the hearing. Complete the *Proof of Notice* form by following the instructions for Form F. If proof is required to be submitted prior to the hearing, make sure that you bring or mail the green certified mail return receipt cards or the electronic confirmation of mailing and the *Proof of Notice* (Form F) to the Criminal Case Management Office immediately. If you choose to mail this information to the court, you should send it by certified mail, return receipt requested.

**NOTE:** Under N.J.S.A. 1:1-2, “Certified Mail” is defined as including “private express carrier service, provided that the private express carrier service provided confirmation of mailing. Confirmation of mailing may be made by electronic means, and shall include, at a minimum, confirmation of fact of mail, time of mailing, date and time of delivery, attempted delivery, signature, or other similar information for confirmation or proof associated with the delivery service.”

### **Step 5: Go to the Hearing**

Arrive at the court on your assigned hearing date about 15 minutes early. (Not all counties require you to appear for the hearing. If your appearance is not required, you must mail the *Proof of Notice* and the green return receipt cards or the electronic confirmation of mailing to the Criminal Case Management office where you filed your petition, at least one week before the scheduled hearing.)

If you are required to appear, take your copies of the filed *Petition for Expungement*, the *Expungement Order*, and the green return receipt cards or the electronic confirmation of

mailing to the hearing (unless you previously filed them with the court). When you arrive at the court, tell the court clerk that you are there.

If any law enforcement officers object to the expungement, they will tell the judge the reason. The judge may ask you some questions and will decide whether to grant or deny you an expungement. If there is no opposition, the judge will, in most cases, grant your expungement.

If no law enforcement officers object to the expungement, the court may order the expungement of your records without a hearing. If this happens, you will receive a signed and filed *Expungement Order* in the mail.

It is a good practice to call the court the day before the hearing to confirm that it is still on the court's calendar.

### **For Granted Expungements - Distribute Your Finalized Expungement Order**

Immediately after you receive a copy of the *Expungement Order* **signed** by the judge and stamped “**Filed**” by the court, mail a copy of the *Expungement Order*, by certified mail, return receipt requested, to each of the following:

- The Attorney General of New Jersey.
- The Superintendent of State Police, Expungement Unit.
- The County Prosecutor.
- The administrator of the municipal court if a municipal court heard the matter.
- The Chief of Police or other head of the police department where the offense was committed or the arrest was made.
- The chief law enforcement officer of any other law enforcement agency of the State that participated in the arrest.
- The Warden or superintendent of any institution in which you were incarcerated.
- The Records Division of any institution in which you were incarcerated.
- The Identification Bureau in the county where the arrest was made or where you were incarcerated (a list of County Identification Bureaus appears at the end of this guide).
- The County Probation Division should be provided a copy if you were granted a conditional discharge, conditional dismissal, enrolled into the Pretrial Intervention Program (PTI), enrolled in a juvenile diversion program (Juvenile Conference Committee or Intake Service Conference), granted a deferred disposition, performed community service, owed fines or restitution or you served a term of probation.
- The Division of Criminal Justice, Records and Identification Unit should be provided a copy if your case was processed through the State Grand Jury.

- The County Family Division should be provided a copy if you are requesting the expungement of any juvenile delinquency matters.

### **Form G - Cover Letter - Notice Expungement Granted**

You may use this *Cover Letter - Notice Expungement Granted* (Form G) when mailing the *Expungement Order* to these agencies. Fill in the blanks on the *Cover Letter* (Form G) and attach the *Cover Letter* to each set of copies.

Keep the mailing receipts and the green cards that are returned to you or the electronic confirmation of mailing as proof that the documents were received.

### **In Conclusion**

As a final reminder, make sure that you have completely followed all of the steps required in this guide. This is very important because even though your records may be eligible for expungement, if you miss any of the required steps, your *Petition for Expungement* may be denied. In that case, you will have to start over.

We have tried to explain as simply as possible the steps to get your records expunged. The forms that you can use are in the following section. If you have questions, contact the Criminal Division in the county where you are filing for the expungement, or the local Judiciary Ombudsman Office.

## **Expungement Forms**

This section contains blank expungement forms and instructions. Follow the instructions in this guide and complete these forms with information about your case(s).

The following forms and instructions are included in this guide:

### **Form A - Petition for Expungement**

The application to the court requesting that the court expunge your record.

### **Form B - Order for Hearing**

The document on which the court will schedule a hearing of your case.

### **Form C - Expungement Order**

The document to be signed by the judge if your Petition for Expungement is granted.

### **Form D - Cover Letter - For Filing**

The form letter to be sent to the court when filing your Petition for Expungement, Order for Hearing and proposed Expungement Order.

### **Form E - Cover Letter - Notice of Hearing**

The form letter to be sent when giving notice of the hearing.

### **Form F - Proof of Notice**

The document to be filed with the court after notice is given.

### **Form G - Cover Letter - Notice Expungement Granted**

The form letter to be sent when giving notice that the expungement was granted.

## Instructions for Petition for Expungement (Form A)

1. Fill in your name, address, telephone number, your State Bureau of Identification (SBI) number, if available, and date of birth, at the top left-hand corner of the form. Your SBI number, if you have one, may be found in a number of places including on your judgment of conviction, your criminal/juvenile history record (“rap sheet”), or your summons/warrant complaint.
2. At the top right-hand corner, fill in the name of the county in which you will be filing the *Petition for Expungement*.
3. **Do not** fill in “Expungement Docket Number.” Leave this space blank. This number is assigned by Criminal Division staff.
4. In the box where it states “In the Matter of the Expungement of the Criminal/Juvenile Records of \_\_\_\_\_,” print your full name.
5. Where it states, “I, \_\_\_\_\_,” fill in your full name.
6. Where it states “residing at,” fill in your current address.
7. In paragraph 1, fill in the date you were arrested/taken into custody. **Include any arrests that may have occurred when you were a juvenile, whether they were sealed or unsealed.**

Fill in the name of the offense you were charged with, the New Jersey statute under which you were arrested, the town (municipality) where you were arrested, and the original indictment, accusation, summons, warrant, complaint, or docket number(s). Include FJ and FO docket number(s) in Family Part matters.

You will need to do this for **every** offense. You must list **all** offenses. You should use the addendum page to list other offenses.

8. Choose all that apply to complete the arrest information in paragraph 1.
  - a. Fill in the date on which the charge was dismissed, the name of the charge that was dismissed, and the name of the court that dismissed the charge. Check “Yes” or “No” to whether the dismissal was a result of a plea bargain.
  - b. Fill in the date on which the charge was acquitted, the name of the charge that was acquitted, and the name of the court that acquitted the charge.
  - c. Fill in the date on which the charge was dismissed, the name of the charge that was dismissed, and the name of the court that dismissed the charge after conditional discharge, conditional dismissal, Pretrial Intervention Program (PTI), Veterans Diversion Program, Juvenile Conference Committee, Intake Service Conference, deferred disposition, or was successfully completed.

- d. Fill in the date you pled guilty or were found guilty, or were adjudicated delinquent, the name of the offense to which you pled guilty or were found guilty, or were adjudicated delinquent, and the law under which you pled guilty or were found guilty, or were adjudicated delinquent (example, N.J.S.A. 2C:33-4 (harassment)).

**Remember**, this is the law under which you pled or were found guilty, or adjudicated delinquent, not the law under which you were arrested or taken into custody.

Fill in the final sentence or disposition. For example, the sentence/disposition could have been jail/prison/incarceration time, a fine or probation, or a combination of these. Also fill in the Court name where you were sentenced, the date that you were released from jail/prison/incarceration, the date that probation or parole was completed, and the date the fine(s) was paid.

- e. If you owe money for restitution, fine(s), or other court-ordered financial assessment(s), fill in the total amount still owed. You should contact the appropriate Probation Division Office(s) for the total still owed. Please see the list of Probation Division Offices at the end of this packet. If you do not owe any money, leave this blank. If your case was a municipal court matter, you should contact the appropriate municipal court(s) for the total amount still owed. For a full listing of Municipal Courts please visit [njcourts.gov](http://njcourts.gov).

**Note:** All of your arrests, charges, or prosecutions, even those for which you are not seeking an expungement, must be listed in your petition.

9. Use **Form A – Addendum Page** to list any additional arrests, charges, or prosecutions. Make photocopies or print extra copies of this page as needed. Use one addendum page for each arrest. Number each paragraph in the space provided, starting with “2”.

10. On **Form A - Continued** select the first checkbox **only** if you are seeking an expungement after four years pursuant to N.J.S.A. 2C:52-2(a)(2), or after three years pursuant to N.J.S.A. 2C:52-3(b)(2), but less than five years have passed since your most recent conviction, payment of court-ordered financial assessment, satisfactory completion of probation or parole, or release from incarceration, whichever is later, **and** you have not otherwise been convicted of a crime, disorderly persons offense, or petty disorderly persons offense since the most recent conviction. Explain the compelling circumstances for this request.

Select the second checkbox **only** if you are seeking an expungement pursuant to N.J.S.A. 2C:52-2(c)(3) of a third or fourth degree controlled dangerous substance crime. Explain the compelling circumstances for this request.

11. On **Form A - Continued** sign and print your name following the paragraph, on the lines that state “your signature” and “your name printed.”

12. You must sign the **Verification** page in the presence of a Notary Public because this page must have a notary seal.



13. On the first line of the ***Verification*** page, fill in your full name.

14. In paragraph 3 of the ***Verification*** page, select the checkbox if you are seeking expungement of a conviction/adjudication of an indictable offense (1st through 4th degree). This statement tells the court that you have never been granted expungement, sealing, or other relief regarding a criminal conviction or adjudication of delinquency.

15. In paragraph 3 of the ***Verification*** page, select the checkbox **only** if you had a legal name change. Explain your name change, including your prior legal name, and the date of the court order for the name change. You must also attach the court order for your name change. However, if your name change was requested and ordered at the time of your divorce, you do not need to attach the divorce order.

16. In the presence of a Notary sign and print your name on the lines that indicate “your signature before a Notary” and “your name printed.”

You must sign this ***Verification*** page in the presence of a Notary who will then affix their seal to this page.

**The *Petition* must be signed at the end of *Form A – Continued* and at the bottom of the *Verification* page.**

## Petition for Expungement (Form A)

(your name) Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III

(your address) 12345 Southwest Grandview Boulevard Northeast, Building 7

(city) Unincorporated Township of Long Hollow Crossing near Newark

(state, zip code) NJ 07102-9999

(your telephone number) 973-555-0142 extension 44821

(State Bureau of Identification (SBI) number,  
if available)

(Date of Birth) 1991-04-17

### Appearing Pro Se

In the Matter of the Expungement of the  
Criminal/Juvenile Records of

Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III

(your name)

Superior Court of New Jersey  
Law Division

County Hudson

(where you are filing)

Expungement

Docket Number: \_\_\_\_\_  
(leave blank – clerk will fill in)

### Civil Action

### Petition for Expungement

I, (your name) Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III, residing at  
(Street Address) 12345 Southwest Grandview Boulevard Northeast, Building 7

(City) Unincorporated Township of Long Hollow Crossing near Newark (State) NJ (Zip Code) 07102-9999 SAY.

1. I was arrested/taken into custody on (date) 2019-03-08 and was charged with (name of  
offense(s)) Disorderly conduct, synthetic boundary example

in violation of N.J.S.A. (statute(s)) 2C:33-2 arising out of  
(municipalities) Jersey City as set forth in the  
(original indictment/accusation/summons/warrant/complaint/docket number (include  
FJ and FO docket number(s) in Family Part matters))  
FO-2026-900123

Choose all that apply:

☐ a. On (date) \_\_\_\_\_ the charge(s) of (name of offense(s)) \_\_\_\_\_

was/were dismissed by the (name of Court) \_\_\_\_\_.

Was the dismissal a result of a plea bargain? ☐ Yes ☐ No

☐ b. On (date) \_\_\_\_\_, I was acquitted of (name of offense(s)) \_\_\_\_\_

in the (name of Court) \_\_\_\_\_ Court.

## Petition for Expungement (Form A)

☐ c. On (date) the charge(s) of (name of offense(s))

\_\_\_\_\_ was/were dismissed by the (name of Court) Court after conditional discharge, conditional dismissal, Pretrial Intervention Program (PTI), Veterans Diversion Program, Juvenile Conference Committee, Intake Service Conference, or deferred disposition was successfully completed.

☒ d. On (date) 2020-04-17 I pled/was found guilty/adjudicated delinquent of the charges of (name of offense(s)) Disorderly conduct, synthetic boundary example

\_\_\_\_\_,  
in violation of N.J.S.A. (statute(s)) 2C:33-2 and sentenced to  
(final sentence) 10 days jail; 12 months probation; \$250 fine

\_\_\_\_\_ by the (name of Court) Municipal Court. I completed  
(jail/prison/incarceration time) jail time on (date) 2020-04-27 ;  
probation on (date) 2021-04-17 and I paid the fine(s) on (date) 2021-05-03.

☐ e. I currently owe restitution, a fine(s) or other court-ordered financial assessment(s) on the following:  
Original indictment/accusation/summons/warrant/complaint/FO or FJ docket number \_\_\_\_\_ in the amount of \$ \_\_\_\_\_.

**Petition for Expungement  
Form A – Addendum Page**

**If you have no other arrests, do not include this page in your petition.  
If you do have additional arrests, use one addendum page for each arrest.  
Number each paragraph in the space provided, starting with “2”.**

\_\_\_\_. I was arrested/taken into custody on (date) \_\_\_\_\_ and was charged with (name of offense(s)) \_\_\_\_\_,  
in violation of N.J.S.A. (statute(s)) \_\_\_\_\_ arising out of  
(municipalities) \_\_\_\_\_ as set forth in the  
(original indictment/accusation/summons/warrant/complaint/docket number (include FJ and FO docket number(s) in Family Part matters)) \_\_\_\_\_.

Choose all that apply:

☐ a. On (date) \_\_\_\_\_ the charge(s) of (name of offense(s)) \_\_\_\_\_  
was/were dismissed by the (name of Court) \_\_\_\_\_.  
Was the dismissal a result of a plea bargain? ☐ Yes ☐ No

☐ b. On (date) \_\_\_\_\_, I was acquitted of (name of offense(s)) \_\_\_\_\_  
in the (name of Court) \_\_\_\_\_ Court.

☐ c. On (date) \_\_\_\_\_ the charge(s) of (name of offense(s)) \_\_\_\_\_  
was/were dismissed by the (name of Court) \_\_\_\_\_ Court after  
conditional discharge, conditional dismissal, Pretrial Intervention Program (PTI),  
Veterans Diversion Program, Juvenile Conference Committee, Intake Service  
Conference, or deferred disposition was successfully completed.

☐ d. On (date) \_\_\_\_\_ I pled/was found guilty/adjudicated delinquent of the  
charge(s) of (name of offense(s)) \_\_\_\_\_,  
in violation of N.J.S.A. (statute(s)) \_\_\_\_\_ and sentenced to  
(final sentence) \_\_\_\_\_  
by the (name of Court) \_\_\_\_\_ Court.  
I completed (jail/prison/incarceration time) \_\_\_\_\_ on (date) \_\_\_\_\_;

**Form A – Continued**

probation on (date) \_\_\_\_\_ and I paid the fine(s) on (date) \_\_\_\_\_.

- ☐ e. I currently owe restitution, a fine(s) or other court-ordered financial assessment(s) on the following:

Original indictment/accusation/summons/warrant/complaint/FO or FJ docket number \_\_\_\_\_ in the amount of \$ \_\_\_\_\_.

## Petition for Expungement (Form A - Continued)

**NOTE:** If you have additional arrests as an adult or were taken into custody as a juvenile by the police, use the Form A - Addendum Page and include those page(s) in this petition.

**Check only if this applies and explain the compelling circumstances:**

- ☐ I am seeking an expungement pursuant to N.J.S.A. 2C:52-2(a)(2) (after four years), or pursuant to N.J.S.A. 2C:52-3(b)(2) (after three years), but less than five years have passed since my most recent conviction, payment of court-ordered financial assessment, satisfactory completion of probation or parole, or release from incarceration, whichever is later, and I have not otherwise been convicted of a crime, disorderly persons offense, or petty disorderly persons offense since the most recent conviction. The compelling circumstances for the Court to grant me an expungement are as follows:

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- ☐ I am seeking an expungement pursuant to N.J.S.A. 2C:52-2(c)(3) of a third or fourth degree controlled dangerous substance crime. The compelling circumstances for the Court to grant me an expungement are as follows:

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I request that this Court grant me an Expungement Order as authorized by N.J.S.A. 2C:52-1, *et seq.*, directing the Clerk of the Court and all relevant criminal/juvenile justice and law enforcement services of the State of New Jersey to expunge from their records all evidence of the arrest/conviction/disposition (police record of when you were taken into custody as a juvenile/adjudication of delinquency/disposition) and all proceedings in this matter, and further directing any New Jersey law enforcement agency which sent records of the adult arrest/juvenile custody and proceedings to the Federal Bureau of Investigation or any other law enforcement agency outside of New Jersey to inform the recipient and the agencies designated to retain control of expunged records to take sufficient precautions to ensure that such records and information are not released

## Petition for Expungement (Form A - Continued)

Respectfully submitted,

Signed: \_\_\_\_\_

(your signature)

Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III

(your name printed)

**Petition for Expungement  
Verification (Form A - Continued)**

(Your Name) Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III, of full age, being duly sworn according to law, upon his oath deposes and says:

1. I am the Petitioner in this matter and statements made in this Petition are true to the best of my knowledge.
2. There are no disorderly persons, petty disorderly persons, indictable charges or juvenile delinquency matters pending against me at this time.
3. Check if this applies:  
☐ I am seeking expungement of a conviction on a criminal case or an adjudication of delinquency on a juvenile case pursuant to N.J.S.A. 2C:52-2, and I have never been granted an expungement, sealing or similar relief regarding a criminal conviction, by any state or federal court.  
☐ I have legally changed my name. I have explained the details of my name change(s) below, included my previous legal name(s), and the date of the court order for the name change(s).  
\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

Signed: \_\_\_\_\_  
(your signature before a Notary)

Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III  
(your name printed)

Sworn to and subscribed before me this  
\_\_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_

\_\_\_\_\_  
(Notary's signature)



## Instructions for Order for Hearing (Form B)

1. At the top left-hand corner, fill in your name and address.
2. At the top right-hand corner, fill in the county in which you will be filing your petition.
3. Do not fill in "Expungement Docket Number." Leave this space blank. The court clerk will give you an expungement docket number and will fill in the blank.
4. In the box where it states "In the Matter of the Expungement of the Criminal/Juvenile Records of \_\_\_\_\_," print your full name.
5. Where it states, "This matter having been opened to the Court upon the annexed Petition of \_\_\_\_\_," fill in your name.
6. Leave the lines blank in the paragraph that begins "IT IS ORDERED this..." The court clerk will fill in the date and time of the hearing.
7. On the line "The Prosecutor of \_\_\_\_\_ County," fill in the county name where you were arrested as an adult or taken into custody as a juvenile. If you were arrested or taken into custody in more than one county, enter the names of each county.
8. On the lines "The administrator(s) of the \_\_\_\_\_ Municipal Court(s)" and "Chief(s) of the \_\_\_\_\_ Police Department(s)," fill in the town where you were arrested as an adult or taken into custody as a juvenile. If you were arrested or taken into custody in more than one town, enter the names of each town.
9. On the line "The \_\_\_\_\_ County(ies) Probation Division", fill in the county name for the probation division, if you were granted a conditional discharge, were granted a conditional dismissal, enrolled into the Pretrial Intervention Program (PTI), participated in a Juvenile Conference Committee, participated in Intake Service Conference, received a deferred disposition, performed community service, owed restitution or fines or you served a term of probation. If your case was transferred to another county for supervision, you should send the information to the original county probation office **and** the county probation office where your supervision was transferred. If the probation division was not involved in your case, you may cross this off.
10. On the line "The Warden(s) of the \_\_\_\_\_ Jail(s) / Prison(s)" and "The Superintendent(s) of \_\_\_\_\_ (name of institution for juveniles only)," fill in the name(s) of the jail(s), place(s)

of incarceration or prison(s) if you were incarcerated. If you were not incarcerated, you may cross this off.

11. Leave the space blank that states “Judge, Superior Court of New Jersey.” This is where the judge will sign the order.

(your name) Alexandrina-Katharine Montgomery-Vandenberg-Oyeland y Fitzwilliam III  
(your address) 12345 Southwest Grandview Boulevard Northeast, Building 7  
(city) Unincorporated Township of Long Hollow Crossing near Newark  
(state, zip code) NJ 07102-9999

## Appearing Pro Se

### In the Matter of the Expungement of the Criminal/Juvenile Records of

Alexandrina-Katharine Montgomery-Vandenberg-Oyeland y Fitzwilliam III

(your name)

## Superior Court of New Jersey Law Division

County Hudson  
(where you are filing)

Expungement  
Docket Number (leave blank - clerk  
will fill in)

## Civil Action

## Order for Hearing

This matter having been opened to the Court upon the annexed Petition of  
(your name) Alexandrina-Katharine Montgomery-Vandenberg-Oyeland y Fitzwilliam III, and for good cause appearing;

**IT IS ORDERED** this \_\_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_, that a Hearing before this Court  
is set for the \_\_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_ at \_\_\_\_\_ o'clock \_\_\_\_\_ .m. to determine whether  
an Order of Expungement shall be granted;

**IT IS FURTHER ORDERED** that Petitioner shall send by certified mail, copies of this  
Order and Petition to the following officials within five (5) days of this Order:

The Attorney General of New Jersey

The Superintendent of the New Jersey State Police, Expungement Unit,

The Prosecutor of \_\_\_\_\_ County(ies),

The administrator(s) of the \_\_\_\_\_  
Municipal Court(s),

Chief(s) of the \_\_\_\_\_ Police Department(s),

The \_\_\_\_\_ County(ies)

Probation Division,

The Warden of the \_\_\_\_\_ Jail/Prison,

The Superintendent of \_\_\_\_\_ (name of  
institution for juveniles only),

The Division of Criminal Justice, Records and Identification Unit.

\_\_\_\_\_  
Judge, Superior Court of New Jersey

## Instructions for Order (Form C)

1. At the top left-hand corner, fill in your full name and address.
2. At the top right-hand corner, indicate the county in which you will be filing your petition.
3. Do not fill in “Expungement Docket Number” leave this space blank. For cases filed in the Criminal Division, the court clerk will give you an expungement docket number and will fill in the blank.
4. In the box where it states, “In the Matter of the Expungement of the Criminal/Juvenile Records of \_\_\_\_\_,” print your full name.
5. Under “Expungement Order” is a “Check only if applies” section:
  - Check the first checkbox **only** for expungements that involve a successful graduation from drug court that occurred prior to April 18, 2016.
  - Check the second checkbox **only** for expungements of the marijuana or hashish offenses included in N.J.S.A. 2C:52-5.1.
  - Check the third box **only** for a Clean Slate Expungement pursuant to N.J.S.A. 2C:52-5.3 (Expungement of one or more crimes, disorderly persons or petty disorderly persons offenses, or a combination of one or more crimes and offenses filed ten years from the most recent conviction, payment of any court-ordered financial assessment, satisfactory completion of probation or parole, or release from incarceration, whichever is later).
6. In the first paragraph of the *Expungement Order*, after “...Verified Petition of,” print your full name, date of birth, and your State Bureau of Identification (SBI) number, if available, where it is indicated.
7. Leave the next three spaces blank where it states “IT IS ORDERED this \_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_.” They will be filled in by the court.
8. On the line “The Prosecutor of \_\_\_\_\_ County,” fill in the county name where you were arrested as an adult or taken into custody as a juvenile. If you were arrested or taken into custody in more than one county, enter the names of each county.
9. On the lines “The administrator(s) of the \_\_\_\_\_ Municipal Court(s)” and “Chief(s) of the \_\_\_\_\_ Police Department(s),” fill in the town where you were arrested as an adult or taken into custody

as a juvenile. If you were arrested or taken into custody in more than one town, enter the names of each town.

10. On the lines “The Warden(s) of the \_\_\_\_\_ Jail(s) / Prison(s)” and “The Superintendent(s) of \_\_\_\_\_ (name of institution for juveniles only),” fill in the name(s) of the jail(s), place(s) of incarceration or prison(s) if you were incarcerated. If you were not incarcerated, you may cross this off.
11. On the line “The \_\_\_\_\_ County Probation Division”, fill in the county name for the probation division, if you were granted a conditional discharge, were granted a conditional dismissal, enrolled into the Pretrial Intervention Program (PTI), participated in a Juvenile Conference Committee, participated in Intake Service Conference, received a deferred disposition, performed community service, owed restitution or fines or you served a term of probation. If your case was transferred to another county for supervision, you should send the information to the original county probation office **and** the county probation office where your supervision was transferred. If the probation division was not involved in your case, you may cross this off.
12. On the lines “Deputy Clerk of the Superior Court of New Jersey, \_\_\_\_\_ County” fill in the county or counties where your records will be expunged (this includes the Criminal and/or Family Divisions, if applicable).
13. After “all information relating to,” fill in your full name.
14. On lines 1-5, fill in the dates, the law(s) under which you were arrested or taken into custody, and the original indictment, accusation, summons, warrant, complaint, or FJ and FO docket number(s) in Family Part matters. If you need more than five rows, attach a separate sheet of paper with the additional information.
15. On line 6, if you were a co-delinquent in any juvenile delinquency matters, list those FJ docket numbers separately after “in which I am a co-delinquent \_\_\_\_\_.”
16. Leave the section on monies that are still owed blank. The court will complete this section, if appropriate.
17. Leave the signature line on the next page blank. This is where the judge will sign the order.

## Expungement Order (Form C)

(your name) Alexandrina-Katharine Montgomery-Vandenberg-Oyalaran y Fitzwilliam III  
(your address) 12345 Southwest Grandview Boulevard Northeast, Building 7  
(city) Unincorporated Township of Long Hollow Crossing near Newark  
(state, zip code) NJ 07102-9999

### Appearing Pro Se

In the Matter of the Expungement of the  
Criminal/Juvenile Records of

Alexandrina-Katharine Montgomery-Vandenberg-Oyalaran y Fitzwilliam III  
(your name)

Superior Court of New Jersey  
Law Division

County Hudson  
(where you are filing)

Expungement  
Docket Number: \_\_\_\_\_  
(leave blank –  
clerk will fill in)

### Civil Action

### Expungement Order

#### Check only if applicable:

- ☐ Successful graduation from drug court prior to 4/18/2016 pursuant to N.J.S.A. 2C:35-14(m).
- ☐ Expungement of the marijuana or hashish offenses included in N.J.S.A. 2C:52-5.1.
- ☐ Clean Slate Expungement pursuant to N.J.S.A. 2C:52-5.3.

This matter having been brought to the Court by

(your name) Alexandrina-Katharine Montgomery-Vandenberg-Oyalaran y Fitzwilliam III whose date of birth is (date) 1991-04-17, and State Bureau of Identification (SBI number, if available, is (SBI number, if available) \_\_\_\_\_, and

**HAVING FOUND** that the requirements for an Expungement under N.J.S.A. 2C:52-1, et seq., have been satisfied;

**IT IS ORDERED** this \_\_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_, that the  
The Attorney General of New Jersey,  
The Superintendent of the New Jersey State Police, Expungement Unit,  
The Prosecutor of \_\_\_\_\_  
County(ies),

## Expungement Order (Form C - Continued)

The administrator(s) of the \_\_\_\_\_  
Municipal Court(s),

Chief(s) of the \_\_\_\_\_ Police  
Department(s),

The \_\_\_\_\_ County(ies)  
Probation Division(s),

The Warden of the \_\_\_\_\_ Jail/Prison,

The Superintendent of \_\_\_\_\_ (name of  
institution for juveniles only),

Deputy Clerk of the Superior Court of New Jersey, Criminal and/or  
Family Divisions, \_\_\_\_\_ County, remove from their  
records all information relating to

(your name) Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III 's

- (1) (date) 2019-03-08 arrest/custody on the charge of violating N.J.S.A.  
(statute) 2C:33-2 under (original indictment/accusation/  
summons/warrant/ complaint/FJ or FO docket number) FO-2026-900123
- (2) (date) \_\_\_\_\_ arrest/custody on the charge of violating N.J.S.A.  
(statute) \_\_\_\_\_ under (original indictment/accusation/  
summons/warrant/ complaint/FJ or FO docket number) \_\_\_\_\_
- (3) (date) \_\_\_\_\_ arrest/custody on the charge of violating N.J.S.A.  
(statute) \_\_\_\_\_ under (original indictment/accusation/  
summons/warrant/ complaint/FJ or FO docket number) \_\_\_\_\_
- (4) (date) \_\_\_\_\_ arrest/custody on the charge of violating N.J.S.A.  
(statute) \_\_\_\_\_ under (original indictment/accusation/  
summons/warrant/ complaint/FJ or FO docket number) \_\_\_\_\_
- (5) (date) \_\_\_\_\_ arrest/custody on the charge of violating N.J.S.A.  
(statute) \_\_\_\_\_ under (original indictment/accusation/  
summons/warrant/ complaint/FJ or FO docket number) \_\_\_\_\_
- (6) If applicable, including the following Family Part docket numbers in  
which I am a co-delinquent (FJ docket numbers) \_\_\_\_\_

and remove all records concerning the subsequent criminal and/or juvenile  
proceedings regarding such charge(s), including any conviction(s),  
adjudication(s) of delinquency or disposition(s), if applicable, and place such  
information in the control of a person within the office designated to retain  
control over expunged records.

## Expungement Order (Form C)

**IT IS FURTHER ORDERED THAT IF MONIES ARE STILL OWED AT THE TIME THIS EXPUNGEMENT IS ORDERED**

☐ A civil judgment is to be entered in the Judiciary's automated system in the name of "Treasurer, State of New Jersey" in the following:

Indictment/accusation/summons/warrant/complaint/ FJ or FO docket number  
\_\_\_\_\_ in the amount of \$ \_\_\_\_\_

Indictment/accusation/summons/warrant/complaint/ FJ or FO docket number  
\_\_\_\_\_ in the amount of \$ \_\_\_\_\_

Indictment/accusation/summons/warrant/complaint/ FJ or FO docket number  
\_\_\_\_\_ in the amount of \$ \_\_\_\_\_

Indictment/accusation/summons/warrant/complaint/ FJ or FO docket number  
\_\_\_\_\_ in the amount of \$ \_\_\_\_\_

**IT IS FURTHER ORDERED** that any of the above officers or agencies which sent fingerprints and/or any records of the above arrest/conviction/adjudication/disposition and proceedings to the Federal Bureau of Investigation or any other office or agency shall notify same of this Order and that the agencies designated to retain such records take sufficient precautions to ensure that such records and information are not released.

**IT IS FURTHER ORDERED** that any records, or the information therein, shall not be released except as provided under the provision of N.J.S.A. 2C:52-1, *et seq.* and that the persons designated to retain control over expunged records take sufficient precautions to ensure that such records and information are not released.

**IT IS FURTHER ORDERED** that in response to requests for information or records, the court office or law enforcement agency shall reply with respect to the arrest/conviction/adjudication/disposition, which is the subject of this Order, that there is no record.

**IT IS FURTHER ORDERED** that the arrest/conviction/adjudication/disposition, which is the subject of this Order, shall be deemed not to have occurred, and the Petitioner may answer accordingly any question relating to this occurrence pursuant to N.J.S.A. 2C:52-27.



## Expungement Order (Form C)

**IT IS FURTHER ORDERED** that this Order does not expunge the records contained in the Controlled Dangerous Substances Registry created pursuant to *P.L. 1970, c. 227 (C.26:2G-17 et seq.)* or the registry created by the Administrative Office of the Courts pursuant to N.J.S.A. 2C:43-21.

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Judge, Superior Court of New Jersey

### **Instructions for Cover Letter - For Filing (Form D)**

1. At the top right-hand corner of the page, fill in the date.
2. At the top-left-hand corner, print the county and the mailing address of the Criminal Case Management Office where you are filing your petition papers. (A list of County Criminal Case Management Offices appears at the end of this guide).
3. On the line that states “your name,” print your full name.
4. In the bottom right-hand corner, sign your name on the line that states “Your signature” and then print your name and mailing address where indicated.

## Cover Letter to Court – For Filing (Form D)

\_\_\_\_\_  
(date)

Clerk, Superior Court of New Jersey

(county) \_\_\_\_\_

(address) \_\_\_\_\_

(city, state, zip code) \_\_\_\_\_

Re: In the Matter of the Expungement of the Criminal/Juvenile Records of:  
(your name) Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III

Dear Sir or Madam:

Enclosed are an original and two copies of a *Petition, Order for Hearing and Proposed Final Order* in this matter. Kindly submit them to the appropriate Judge and return copies marked "Filed."

Thank you.

Sincerely,

\_\_\_\_\_  
(your signature)

Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III

(your name)

12345 Southwest Grandview Boulevard Northeast, Building 7

(address)

Unincorporated Township of Long Hollow Crossing near Newark

(city)

NJ 07102-9999

(state, zip code)

Enc:

## Instructions for Cover Letter – Notice of Hearing (Form E)

1. At the top right-hand corner of the page, fill in the date.
2. Fill in the addresses you have located for each applicable agency that was involved with your case(s). Some of the addresses have been provided for you. If there are multiple agencies in each category listed in the address section, you should make a copy or copies of the cover letter.
3. On the line “County Probation \_\_\_\_\_”, if your case was transferred to another county for supervision, you should send the information to the original county probation office **and** the county probation office where your supervision was transferred.
4. On the line that states "Expungement Hearing: (date), (time)," fill in the date and time that appear on your copy of the *Order for Hearing*.
5. On the line that states "Expungement Docket Number," fill in the docket number that appears in the upper right-hand corner of your filed copies of the *Petition for Expungement*, the *Order for Hearing*, and the proposed final order (*Expungement Order*).
6. In the bottom right-hand corner, sign your name on the line that states "your signature" and then print your name and mailing address where indicated.
7. Each Form E must be mailed via certified mail. Therefore, you must purchase/secure more than one certified mail card/receipt from the post office if you are mailing Form E to multiple agencies and/or locations.
8. Attach a copy of this *Cover Letter* (Form E) to each copy of the filed expungement package and mail a package via certified mail return receipt requested, to each agency. Keep a copy of Form E and your certified mail receipts/electronic confirmation for your records.

## Instructions for Cover Letter – Notice of Hearing (Form E)

\_\_\_\_\_  
(date)

|                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                      |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Attorney General, State of New Jersey<br>Hughes Justice Complex<br>Post Office Box 080<br>Trenton, NJ 08625-0080                                                                                                                                            | Superintendent, State Police<br>Expungement Unit<br>Post Office Box 7068<br>West Trenton, NJ 08628                                                                                                                                                                                   |
| Prosecutor, _____<br>_____<br><div style="text-align: center;">(address)</div> _____<br><div style="text-align: center;">(city, state, zip code)</div>                                                                                                      | Municipal Court Administrator<br>_____<br>_____<br><div style="text-align: center;">(address)</div> _____<br><div style="text-align: center;">(city, state, zip code)</div>                                                                                                          |
| Chief of Police, _____<br>_____<br><div style="text-align: center;">(address)</div> _____<br><div style="text-align: center;">(city, state, zip code)</div>                                                                                                 | Warden/Jail _____<br><div style="text-align: center;">(name of jail/prison)</div> _____<br><div style="text-align: center;">(address)</div> _____<br><div style="text-align: center;">(city, state, zip code)</div>                                                                  |
| County Probation _____<br><div style="text-align: right;">Original County</div> _____<br><div style="text-align: center;">(address)</div> _____<br><div style="text-align: center;">(city, state, zip code)</div>                                           | County Probation _____<br><div style="text-align: right;">Transfer County</div> <div style="text-align: right;">(use in Transfer Cases only)</div> _____<br><div style="text-align: center;">(address)</div> _____<br><div style="text-align: center;">(city, state, zip code)</div> |
| <b>Superintendent</b> _____<br><div style="text-align: center;"><b>(name of institution<br/>for juveniles only)</b></div> _____<br><div style="text-align: center;">(address)</div> _____<br><div style="text-align: center;">(city, state, zip code)</div> | County Sheriff, _____<br>_____<br><div style="text-align: center;">(address)</div> _____<br><div style="text-align: center;">(city, state, zip code)</div>                                                                                                                           |
| Division of Criminal Justice<br>Records and Identification Unit<br>25 Market Street<br>Post Office Box 085<br>Trenton, New Jersey 08625                                                                                                                     |                                                                                                                                                                                                                                                                                      |

**Cover Letter – Notice of Hearing (Form E)**

Expungement Docket Number \_\_\_\_\_

Re: Expungement Hearing: \_\_\_\_\_ at \_\_\_\_\_  
(date) (time)

Dear Sir or Madam:

Enclosed are copies of the *Petition for Expungement, Order for Hearing*, and proposed *Final Order* in this matter.

Sincerely,

\_\_\_\_\_  
(your signature)

Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III

\_\_\_\_\_  
(your name)

12345 Southwest Grandview Boulevard Northeast, Building 7

\_\_\_\_\_  
(address)

Unincorporated Township of Long Hollow Crossing near Newark

\_\_\_\_\_  
(city)

NJ 07102-9999

\_\_\_\_\_  
(state, zip code)

## Instructions for Proof of Notice (Form F)

This form is to be used only if the proof of mailing of the filed expungement package to each agency is required to be submitted to the court prior to the court hearing. Submit this form pursuant to the clerk's instructions.

1. In the upper left-hand corner, print your full name and address.
2. In the upper right-hand corner, fill in the county in which you filed the petition.
3. Fill in the Expungement Docket Number.
4. In the box where it states “In the Matter of the Expungement of the Criminal/Juvenile Records of \_\_\_\_\_,” print your full name.
5. Fill in the date that you mailed copies of the filed *Petition for Expungement*, the *Order for Hearing*, and the proposed *Expungement Order* to each agency. The date will be found on your certified mail receipts or electronic confirmation.
6. Fill in the location (town or county) for each agency to which you sent your expungement package.
7. On the line “The \_\_\_\_\_ County(ies) Probation Division”, if your case was transferred to another county for supervision, you should send the information to the original county probation office **and** the county probation office where your supervision was transferred.
8. Sign and date this form at the bottom.
9. Mail Form F, along with the certified mail receipts or electronic confirmation, to the Court where your hearing is scheduled. Keep a copy of Form F and your certified mail receipts or electronic confirmation for your records.

## Proof of Notice (Form F)

(your name) Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III

(your address) 12345 Southwest Grandview Boulevard Northeast, Building 7

(city) Unincorporated Township of Long Hollow Crossing near Newark

(state, zip code) NJ 07102-9999

### Appearing Pro Se

In the Matter of the Expungement of the  
Criminal/Juvenile Records of

Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III

(your name)

Superior Court of New Jersey  
Law Division

County Hudson

(where you are filing)

Expungement

Docket Number: \_\_\_\_\_

**Civil Action**

**Proof of Notice**

On (date) \_\_\_\_\_, I mailed a copy of the Petition for Expungement, Order for Hearing and Proposed Final Order by way of certified mail, return receipt requested to the following:

The Attorney General of New Jersey,

The Superintendent of the New Jersey State Police, Expungement Unit,

The Prosecutor of \_\_\_\_\_  
County(ies),

The administrator(s) of the \_\_\_\_\_  
Municipal Court(s),

Chief(s) of the \_\_\_\_\_ Police  
Department(s),

The Warden of the \_\_\_\_\_ Jail/Prison,

The Superintendent of \_\_\_\_\_ (name of  
institution for juveniles only),

The \_\_\_\_\_ County(ies)  
Probation Division,

The Division of Criminal Justice, Records and Identification Unit.

Enclosed are the certified mail receipts or electronic confirmation that were returned to me.

\_\_\_\_\_  
(your signature)

\_\_\_\_\_  
(date)



## Instructions for Cover Letter – Notice Expungement Granted (Form G)

1. At the top right-hand corner of the page, fill in the date.
2. Next, fill in the addresses for each applicable agency that you want to notify that your record has been expunged. If there are multiple agencies in each category listed in the address section, you should make a copy or copies of the cover letter.
3. On the line “County Probation \_\_\_\_\_”, if your case was transferred to another county for supervision, you should send the information to the original county probation office **and** the county probation office where your supervision was transferred.
4. On the line that states “your name,” print your full name as it appears on your *Expungement Order*.
5. On the line that states “Expungement Docket Number,” fill in the expungement docket number that appears on your *Expungement Order*.
6. In the bottom right-hand corner, sign your name on the line that states “your signature” and then print your name and mailing address where indicated.
7. Each Form G must be mailed via certified mail. Therefore, you must purchase/secure more than one certified mail card/receipt from the post office if you are mailing Form G to multiple agencies and/or locations.
8. Attach a copy of this *Cover Letter* (Form G) to each copy of the **signed** and **filed** *Expungement Order* and mail it via certified mail, return receipt requested, to each agency. Keep a copy of Form G and your certified mail receipts or electronic confirmation for your records.

## Cover Letter – Notice Expungement Granted (Form G)

|                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                            |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <div style="border-bottom: 1px solid black; display: inline-block; width: 150px;"></div> (date)                                                                                                                                         |                                                                                                                                                                                                                                            |
| Attorney General, State of New Jersey<br>Hughes Justice Complex<br>Post Office Box 080<br>Trenton, NJ 08625-0080                                                                                                                        | Superintendent, State Police<br>Expungement Unit<br>Post Office Box 7068<br>West Trenton, NJ 08628                                                                                                                                         |
| Prosecutor, _____<br>_____<br><div style="text-align: center;">(address)</div> _____<br><div style="text-align: center;">(city, state, zip code)</div>                                                                                  | Municipal Court Administrator<br>_____<br>_____<br><div style="text-align: center;">(address)</div> _____<br><div style="text-align: center;">(city, state, zip code)</div>                                                                |
| Chief of Police, _____<br>_____<br><div style="text-align: center;">(address)</div> _____<br><div style="text-align: center;">(city, state, zip code)</div>                                                                             | Warden/Jail _____<br><div style="text-align: center;">(name of jail/prison)</div> _____<br><div style="text-align: center;">(address)</div> _____<br><div style="text-align: center;">(city, state, zip code)</div>                        |
| County Probation _____<br><div style="text-align: right;">Original County</div> _____<br><div style="text-align: center;">(address)</div> _____<br><div style="text-align: center;">(city, state, zip code)</div>                       | County Probation _____<br><div style="text-align: right;">Transfer County (use for transfers only)</div> _____<br><div style="text-align: center;">(address)</div> _____<br><div style="text-align: center;">(city, state, zip code)</div> |
| Superintendent _____<br><div style="text-align: right;">(name of institution for juvenile only)</div> _____<br><div style="text-align: center;">(address)</div> _____<br><div style="text-align: center;">(city, state, zip code)</div> | County Identification Bureau,<br>_____<br><div style="text-align: center;">(address)</div> _____<br><div style="text-align: center;">(city, state, zip code)</div>                                                                         |
| Division of Criminal Justice<br>Records and Identification Unit<br>25 Market Street<br>Post Office Box 085<br>Trenton, New Jersey 08625                                                                                                 | County Family Division<br>_____<br>_____<br><div style="text-align: center;">(address)</div> _____<br><div style="text-align: center;">(city, state, zip code)</div>                                                                       |

Re: In the Matter of the Expungement of the Criminal/Juvenile Records of

Alexandrina-Katharine Montgomery-Vandenberg-Oyeland y Fitzwilliam III

(your name)

(expungement docket number)

Dear Sir or Madam:

Enclosed is a copy of an *Expungement Order*. Please take the appropriate action to see that these records are expunged.

Sincerely,

(your signature)

Alexandrina-Katharine Montgomery-Vandenberg-Oyeland y Fitzwilliam III

(your name)

12345 Southwest Grandview Boulevard Northeast, Building 7

(address)

Unincorporated Township of Long Hollow Crossing near Newark

(city)

NJ 07102-9999

(state, zip code)